

20GDCV00230 20GDCV00230

County: los-angeles

Division: Civil Law and Motion

Department: D

Hearing date: 2026-08-14

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Case Number: 20GDCV00230 Hearing Date: August 14, 2026 Dept: D

TENTATIVE RULING

Calendar: 11

Date: August 14, 2026

Case No: 20GDCV00230 Trial Date: n/a

Case Name: Financial Pacific Leasing, Inc. v. El Chilerito Spice Co Inc., et al.

MOTION TO SET ASIDE DISMISSAL PURSUANT TO CCP SECTION 664.6

[CCP § 664.6]

Moving Party: Plaintiff, Financial Pacific Leasing, Inc.

Responding Party: Defendant, El Chilerito Spice Co. Inc., Jorge Reyes, Silvia Reyes [Unopposed]

RELIEF REQUESTED:

Set aside dismissal entered on August 6, 2021

CAUSES OF ACTION: from Complaint

1) Breach of Lease Agreement

2) Breach of Guaranty

3) Account Stated

CAUSES OF ACTION: from Cross-Complaint

1) Negligence

2) Rescission

3) Unfair Business Practices Under Bus. & Prof. Code § 17200

4) Fraudulent Concealment

SUMMARY OF FACTS:

On August 18, 2018, Financial Pacific Leasing, Inc. ("Plaintiff") and El Chilerito Spice Co., Inc. ("El Chilerito") entered into a written lease agreement for certain equipment. The Complaint alleges that on November 15, 2019, El Chilerito defaulted on the agreement by failing to make the payment due, or any payments due thereafter.

ANALYSIS:

"If parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If requested by the parties, the court may retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement." (CCP § 664.6, subd. (a).)

Strict compliance with the statutory requirements is necessary before a court can enforce a settlement agreement under this statute. (*Sully-Miller Contracting Co. v. Gledson/Cashman Construction, Inc.* (2002) 103 Cal.App.4th 30, 37.) The party seeking to enforce a settlement "must first establish the agreement at issue was set forth 'in a writing signed by the parties' (§ 664.6) or was made orally before the court." (*Harris v. Rudin, Richman & Appel* (1999) 74 Cal.App.4th 299, 304 [holding that a letter confirming the essential terms of a settlement agreement was not a "writing signed by the parties" sufficient to satisfy the requirements of Section 664.6].)

Plaintiff moves to set aside the dismissal entered in this action and return the case to the Court's active calendar. Plaintiff asserts that the parties entered into a settlement agreement on May 24, 2021, with the Court retaining jurisdiction under CCP 664.6. (Iezza Decl., ¶¶ 2-3.) Plaintiff asserts that Defendants have failed to make any payments pursuant to the settlement agreement. (Iezza Decl., ¶ 4.) However, Plaintiff has not provided the Court with a copy of the signed settlement agreement. Because of its summary nature, strict compliance with the requirements of section 664.6 is a prerequisite to invoking the power of the court to impose a settlement agreement. (*Critzer v. Enos* (2010) 187 Cal.App.4th 1242,1262.) The signed-writing requirement furnishes unequivocal proof of the parties' intent to enter a binding settlement. (*Id.*, at p. 1253.)

Without evidence of the settlement agreement, the Court cannot make the threshold determination that a valid and enforceable agreement exists, nor can it interpret the agreement's terms and conditions to determine whether the relief Plaintiff seeks is warranted.

Thus, the motion is DENIED without prejudice to Plaintiff refiling the motion upon submitting competent evidence of a valid and enforceable settlement agreement.

RULING:

Plaintiff Financial Pacific Leasing, Inc.'s Motion to Set Aside Dismissal is DENIED, without prejudice.

DEPARTMENT D IS CONTINUING TO CONDUCT AND ENCOURAGE

VIDEO APPEARANCES

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